

IDAPA 16 – IDAHO DEPARTMENT OF HEALTH AND WELFARE

Division of Welfare

16.03.08 – Federal Welfare Programs

Who does this rule apply to?

For those seeking cash assistance under the Temporary Assistance for Families in Idaho (TAFI) program.

What is the purpose of this rule?

These rules provide standards for the administration of the TAFI program. The purpose of these rules is to help participants in the Temporary Assistance for Families in Idaho (TAFI) program to obtain jobs by providing assistance and support. This focus requires more than government alone can or should provide. This program requires relationships where participants, families, local communities and employers work together to help participants obtain employment and achieve self-reliance. Department resources for applicants and participants will be provided in the following priority order, if applicable: Child Support Services (CSS); child care assistance; other Department services such as Medicaid, Food Stamps, Aid to the Aged, Blind and Disabled (AABD); and TAFI.

What is the legal authority for the agency to promulgate this rule?

This rule implements the following statute passed by the Idaho Legislature:

Public Assistance and Welfare -

- [Section 56-202, Idaho Code](#) – Public Assistance Law: Duties of Director of State Department of Health and Welfare

Where can I find information on Administrative Appeals?

Administrative appeals and contested cases are governed by the provisions of the Idaho Administrative Procedures Act, [Chapter 52, Title 67, Idaho Code](#), and IDAPA [62.01.01](#), “Idaho Rules of Administrative Procedure.”

How do I request public records?

Unless exempted, all public records are subject to disclosure by the Department that will comply with [Title 74, Chapter 1, Idaho Code](#), upon requests. Confidential information may be restricted by state or federal law, federal regulation, and IDAPA [16.05.01](#), “Use and Disclosure of Department Records.”

Who do I contact for more information on this rule?

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Webpages: <https://healthandwelfare.idaho.gov/services-programs/financial-assistance/about-tafi>

This rule chapter will be reviewed in compliance with Section [67-5292, Idaho Code](#), and in accordance with the 8-year rule review schedule linked [here](#).

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16.03.08 – FEDERAL WELFARE PROGRAMS

000. LEGAL AUTHORITY.

Section 56-202, Idaho Code, the Low-Income Home Energy Assistance Act of 1981, 42 U.S.C Sections 8621 to 8629, and 45 CFR Parts 260 - 265. (7-1-26)

001. SCOPE.

These rules provide standards for the administration of the Temporary Assistance for Needy Families (TANF) program and the Low-Income Home Energy Assistance Program (LIHEAP). These rules do not apply to the Emergency Assistance for Families in Idaho program. (7-1-26)

002. – 099. (RESERVED)

TANF PROGRAM (Sections 100–199)

100. TANF ELIGIBILITY.

To be eligible for TANF, individuals must care for a dependent child or be pregnant and meet these requirements: (7-1-26)

01. **Application.** Submit a signed application; (7-1-26)
02. **Residency.** Individuals must reside in Idaho (absence allowed for up to one hundred and eighty (180) days), intend to remain, and not claim residency in another state; (7-1-26)
03. **Household Unit.** Only one (1) TANF cash benefit is allowed in the same month for the household unit; and (7-1-26)
04. **Other Benefits.** Households eligible for TANF may not also receive Aid to the Aged, Blind, and Disabled (AABD) cash or Foster Care payments. (7-1-26)

101. MANDATORY TANF HOUSEHOLD MEMBERS.

A household must include: (7-1-26)

01. **Dependent Children.** Children under the age of eighteen (18) who reside with a parent or caretaker relative, including siblings and half siblings, living in the same home. (7-1-26)
02. **Parents.** Individuals who have an eligible child living with them. (7-1-26)
03. **Pregnant Woman.** At least in the third trimester before the baby is due and is unable to work due to medical reasons. (7-1-26)
04. **Spouses.** A married spouse living in the home. (7-1-26)
05. **Caretaker Relative.** An adult family member (other than the parent) who is responsible for a dependent child. (7-1-26)

102. INCOME AND RESOURCES.

01. **Income Determination.** Eligibility and benefit amounts are based on countable income and resources including those of ineligible household members as determined by the Department. (7-1-26)
02. **Caretaker Income.** When a caretaker relative is applying solely for a relative child, only the child's income is counted. (7-1-26)

103. COOPERATION RESPONSIBILITY.

The parent, or caretaker relative included in the grant, must cooperate with the Department to identify and locate any non-custodial parent, establish paternity, and establish, modify and enforce the child support order, unless good cause exists. (7-1-26)

104. GOOD CAUSE FOR NOT COOPERATING.

Good cause for not cooperating with Child Support Services (CSS) are limited to: (7-1-26)

01. Rape or Incest. Proof is provided that the child was conceived as a result of rape or incest. (7-1-26)

02. Physical or Emotional Harm. Proof is provided that the non-custodial parent may inflict physical or emotional harm to the children, the custodial parent, or the caretaker relative. (7-1-26)

03. Minimum Information Cannot be Provided. Substantial and credible proof is provided indicating the participant cannot provide the minimum information regarding the non-custodial parent. (7-1-26)

105. – 110. (RESERVED)

111. SUBSTANCE ABUSE SCREENING AND TESTING NOTICE AT APPLICATION.
The Department will provide notice of substance abuse screening and possible testing to each TANF applicant. (7-1-26)

01. Screening Requirement. The Department conducts substance abuse screening as a condition of receiving TANF cash assistance. (7-1-26)

02. Testing Requirement. The Department conducts substance abuse testing as a condition for receiving TANF cash assistance, if screening indicates the applicant is engaged in, or at high risk of, substance abuse. (7-1-26)

03. Treatment Requirement. Participants must enter a substance abuse treatment program and cooperate with treatment, if screening, assessment or testing shows them in need of substance abuse treatment. (7-1-26)

112. INDIVIDUAL RESPONSIBILITY PLAN (IRP).

01. Individual Responsibility Plan. An Individual Responsibility Plan (IRP) must be negotiated and signed by the mandatory adult household members as defined in these rules, with all application activities completed before eligibility can be approved. The household must continue to comply with ongoing IRP requirements to remain eligible. (7-1-26)

02. Modifications. If the participant cannot meet an IRP condition, the participant must notify the Department. The IRP may be renegotiated or modified when conditions change. (7-1-26)

113. INTENTIONAL PROGRAM VIOLATIONS (IPV).
If an individual commits IPV the Department will take all reasonable steps to recover the overpayment from the responsible individual. (7-1-26)

114. SANCTIONS FOR NON-COMPLIANCE.

01. Applicant Voluntary Quit. An adult household member who quits a twenty-plus (20+) hour/week job within sixty (60) days of application without good cause results in ninety (90) days of ineligibility. (7-1-26)

02. Striking. If any adult household member is on strike, the entire household is ineligible. (7-1-26)

03. Work Activity Noncompliance. Failure to meet work activity requirements in the IRC, without good cause, counts as an occurrence. Penalties are based on the number of occurrences as follows: (7-1-26)

a. First Occurrence. The household is ineligible for one (1) month or until compliance, whichever is longer. (7-1-26)

b. Second Occurrence. The household is ineligible for three (3) months or until compliance, whichever is longer. (7-1-26)

- c.** Third Occurrence. The household permanently is ineligible. (7-1-26)
- 04. Work Activity Penalties.** Work activity penalties are applied as follows: (7-1-26)
- a.** Individual Penalty. Penalties for individuals count towards an individual's total number of sanctions. Any household an individual resides in during the period is subject to the penalty period. (7-1-26)
- b.** Child Work Activity Penalty. A fifty-dollar (\$50) penalty per month, per child sixteen (16) years of age or older, will be subtracted from the household grant if they do not meet work activity requirements while living in the household. (7-1-26)
- c.** School Attendance Penalty. A fifty dollar (\$50) monthly deduction per child applies if school-age children fail to attend school, unless participating in IRP-approved work activities. (7-1-26)
- 05. Paternity.** If the grant is reduced by fifty percent (50%) for failure to establish paternity within twelve (12) months, child support penalties apply first before school or work penalties. (7-1-26)
- 06. IRP Noncompliance.** Failing to meet IRP requirements without good cause will result in applicable penalties. (7-1-26)
- 115. OVERPAYMENT.**
In the event of an overpayment the participant will be notified of the overpayment including details on the recovery process, hearing rights, repayment methods, and the need to schedule a repayment interview. (7-1-26)
- 116. – 199. (RESERVED)**

LIHEAP
(Sections 200–299)

200. LIHEAP ELIGIBILITY.

To be eligible for LIHEAP, households must meet the following requirements: (7-1-26)

- 01. Application.** Submit a signed application or have active Supplemental Nutrition Assistance Program (SNAP) benefits in the current LIHEAP season (October to September); (7-1-26)
- 02. Citizenship.** Meet citizenship eligibility requirements; (7-1-26)
- 03. Income.** Meet income eligibility requirements; (7-1-26)
- 04. Residency.** Reside in Idaho; (7-1-26)
- 05. Verifications.** Provide requested verifications; (7-1-26)
- 06. Benefits.** Only one (1) LIHEAP regular assistance benefit and one (1) LIHEAP Crisis benefit per LIHEAP season; (7-1-26)
- 07. Responsibility.** A household member is responsible for home energy costs and incur the costs either directly or as a designated portion of their rent; and (7-1-26)
- 08. Federal Income.** Households in which one (1) or more individuals are receiving Supplemental Security Income (SSI) under Title XVI of the Social Security Act, SNAP, or means tested Veterans Affairs (VA) benefits are eligible for LIHEAP. (7-1-26)

201. MANDATORY LIHEAP HOUSEHOLD MEMBERS.

All individuals or groups of individuals who are living together as one economic unit for whom residential energy is customarily purchased in common or who make designated payments for energy as a portion of rent. (7-1-26)

202. INCOME.

Gross income is counted for all household members, including income from ineligible household members, as determined by the Department. (7-1-26)

203. OVERPAYMENTS.

In the event of an overpayment, the participant will be notified of the overpayment, including details on the recovery process, hearing rights, and repayment methods. (7-1-26)

204. RECOUPMENT OF OVERPAYMENT.

The Department will take all reasonable steps to recover the overpayment from the responsible individual who provided intentionally false or misleading information to obtain program eligibility. (7-1-26)

205. PROVISIONS CONTINGENT UPON FEDERAL FUNDING.

This program is contingent upon availability and receipt of funds appropriated through federal legislation. When federal funds are not available, these provisions or any part therein are considered dormant; there may be no advance notice of termination or reduction of benefits. If additional funds are available, a supplemental payment may be made at the discretion of the Administrator. (7-1-26)

206. – 999. (RESERVED)